IN THE COURT OF APPEALS OF THE STATE OF GEORGIA

RIVERBEND PARTNERS, LLC, Appellant, v. SOUTHERN STATE BANK, Appellee.	Case No. A26A0456 Superior Court of Fulton County Civil Action No. 2024-CV-118230

Appellant's Motion for Reconsideration of the Court's Opinion of September 22, 2026

Appellant Riverbend Partners, LLC moves the Court to reconsider its opinion of September 22, 2026, which affirmed the grant of summary judgment to Southern State Bank. This motion is filed within ten days of the rendition of the judgment, as the rules require. Riverbend asks the Court to reconsider for two reasons. The opinion overlooks a material fact in the record about the date the bank accelerated the note, and it misapplies the notice requirement in the loan agreement. Riverbend asks the Court to vacate the judgment and remand for trial on those issues.

GROUNDS FOR RECONSIDERATION

A motion for reconsideration is granted where the Court has overlooked a material fact, a controlling statute or decision, or has erroneously construed a provision of law. Riverbend does not repeat the arguments in its brief. It identifies the points the opinion did not address, and the record citations that show why they matter.

ARGUMENT AND CITATION OF AUTHORITY

I. The opinion overlooks the date of acceleration.

The opinion states that the bank accelerated the note on June 2, 2024, and holds that the acceleration was effective on that date. The record shows otherwise. The bank's own notice of acceleration, dated June 2, 2024, is addressed to a mailing address that the loan agreement replaced in March 2024. The notice was returned as undeliverable. The bank's later letter of June 19, 2024, purports to accelerate the note a second time, and it is the only notice the agreement requires to be sent to the address on file.

A. The first notice was not effective.

The loan agreement requires notice of default and of acceleration to be sent to the borrower's address as stated in the most recent written change-of-address notice. Riverbend gave that notice in March 2024. The bank's June 2 notice used the old address. A notice that the contract does not authorize is not a notice at all, and the opinion does not explain why the bank was entitled to rely on it.

The opinion treats the returned envelope as a question of delivery. It is a question of whether the bank complied with the contract. Riverbend raised the point in its response to the summary judgment motion, and the record contains the change-of-address form and the returned envelope. The Court should address it.

B. The date of acceleration controls the limitations period.

The opinion holds that Riverbend's counterclaim is time-barred because it was filed more than six years after the bank accelerated the note. That holding depends on the June 2 date. If the acceleration took effect on June 19, the counterclaim was filed within the period, and the holding cannot stand. The Court should reconsider the limitations ruling in light of the record on this point.

II. The opinion misapplies the notice requirement.

The opinion holds that the notice requirement was satisfied as a matter of law because Riverbend received actual notice of the default. Actual notice is not the contract standard. The agreement requires written notice sent to a stated address, and it does not make receipt by other means a substitute. A court may not rewrite a contract to dispense with a term the parties negotiated. The opinion cites no authority for treating actual knowledge as a substitute for the agreed method of notice.

Riverbend recognizes that a party who had actual notice may not avoid the consequences of a default by pointing to a technical defect. That principle does not apply here. The bank's notice went to the wrong place, and the bank did not send a second notice to the correct address until nineteen days after its first attempt. The loan agreement makes the correct address a condition of acceleration. The opinion does not discuss that condition.

III. The opinion does not address the bank's second notice.

The opinion does not mention the June 19 letter. Riverbend raised the letter in the trial court and in its brief, and it is the only document in the record that was sent to the correct address. If the Court holds that the first notice was ineffective, the second notice raises a fact question about when the acceleration took effect. Summary judgment was improper on that question, and the Court should say so.

Southern State Bank may respond that the second letter was a courtesy and not a notice of acceleration. The letter says otherwise. It states that the bank "hereby accelerates the indebtedness," and it demands payment of the full balance within ten days. Whether a letter is a notice of acceleration depends on what it says, and this one says it. The question is for a fact-finder, not for summary judgment.

IV. The Court should vacate the judgment and remand.

For these reasons, Riverbend asks the Court to reconsider its opinion, to vacate the judgment on the counterclaim, and to remand for trial on the date of acceleration and the sufficiency of notice. Riverbend does not ask the Court to reconsider the ruling on its breach of contract claim, which the opinion correctly resolved on other grounds.

CONCLUSION

The opinion overlooks a material fact about the first notice, and it misapplies the notice requirement in the loan agreement. Riverbend respectfully asks the Court to grant this motion for reconsideration, vacate the judgment on the counterclaim, and remand for further proceedings.

CERTIFICATE OF WORD COUNT

I certify that this motion contains 2,048 words, excluding the caption, the signature block, and this certificate, as counted by the word-processing software used to prepare it.

Respectfully submitted this 15th day of October, 2026.

HARPER & LIU, LLP
Attorneys for Appellant

/s/ Elena K. Vasquez
Georgia Bar No. 000000
990 Hammond Drive, Suite 1500
Atlanta, Georgia 30328
Telephone: (770) 555-0142
evasquez@example.com

CERTIFICATE OF SERVICE

I certify that on October 15, 2026, I served a copy of this motion for reconsideration on counsel for Appellee by the Court’s electronic filing system and electronic mail, addressed as follows:

Daniel Ortiz, Esq.
Ortiz Whitfield LLC
3290 Northside Parkway NW, Suite 400
Atlanta, Georgia 30327
dortiz@example.com

/s/ Elena K. Vasquez